



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 15 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11656

EXPIRATION DATE: May 12, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Union Pacific Railroad Company
Omaha, Nebraska
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation, in commerce, of a DOT Specification 105S300W tank car, containing a class 2.2 material, meeting all DOT requirements except that the tank cars jacket and insulation are damaged thus exposing a portion of the tank shell. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.31(a); 179.100-4 and 172.302(c).
5. BASIS. This emergency exemption is based on Union Pacific Railroad Company's application of March 11, 1996, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to protect life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification number	Packing Group
Ammonia, anhydrous, liquified	2.2	UN 1005	N/A

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7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT specification 105S300W tank car, CITX 35207, meeting all DOT specification requirements except that the tank cars jacket and insulation are damaged, thus exposing a portion of the tank shell.

b. All applicable requirements of 49 CFR Parts 215, 231 and 232 must be met prior to any movement of tank car CITX 35207.

8. SPECIAL PROVISIONS.

a. Shipment of the tank car is authorized for purposes of unloading from the Union Pacific Railroad Company's railyard in Elko, Nevada, to Cyanco, Marcus, Nevada,, a distance of approximately 150 miles, utilizing the most direct route available via Union Pacific Railroad Company.

b. In addition, upon completion of product unloading, shipment of the tank car is authorized for purposes of effecting necessary repairs, from Cyanco, Marcus, Nevada to Trinity Industries, Saginaw, Texas, a distance of approximately 1950 miles, utilizing the following Union Pacific Railroad Company route: Marcus - North Platte - Parsons, KS - Ft.Worth (Saginaw).

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety Assurance and Compliance, RRS-12
Hazardous Materials Division
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9252 or 366-6773

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS.

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipment made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA